

25VECV04492 25VECV04492

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-09-04

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Case Number: 25VECV04492 Hearing Date: September 4, 2026 Dept: T

25VECV04492 ARAKELYAN V

UNITED FINANCIAL

[TENTATIVE] ORDER: Defendant United Financial Casualty

Company's Demurrer to the Complaint is SUSTAINED WITH 20 DAYS LEAVE TO AMEND. Leave to amend is limited to curing the pleading defects identified and not to add new causes of action.

Introduction

Defendant United Financial Casualty Company (Defendant)

demurred to Plaintiff Davit Arakelyan's (Plaintiff) Complaint. The demurrer placed into issue the first cause of action (COA) for breach of contract, the second COA for breach of the covenant of good faith and fair dealing, and the third COA for declaratory relief.

An opposition was due August 25, 2026, and none was filed.

Discussion

Defendant asserted that the contract-based claims failed to plead sufficient facts because a copy of the policy was not attached and Plaintiff failed to plead the terms of the policy verbatim. Defendant further argued that the contract-based claims failed to plead any facts to show that a third-party claim stemming from the scooter/automobile accident was made by the third party. Defendant further asserted that Plaintiff failed to clearly allege any denial of policy benefits because the

allegations of breach are conclusory.

Defendant asserted that the third-party claim was resolved using policy benefits. Defendant's arguments are persuasive and the contract-based claims are not supported by sufficient fact pleading.

The demurrer to the Complaint is SUSTAINED WITH LEAVE TO AMEND.

IT IS SO ORDERED, CLERK
TO GIVE NOTICE.